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9 JONATHAN FLORES

10 **UNITED STATES DISTRICT COURT**
11 **DISTRICT OF CALIFORNIA**

12
13 JONATHAN FLORES, an individual.

Case No.:

(UNLIMITED CIVIL ACTION)

15
16 Plaintiff,

COMPLAINT FOR DAMAGES

17 v.

18 1. NEGLIGENCE – MOTOR
19 VEHICLE

20 UNITED STATES OF AMERICA; and
21 DOES 1 to 50, inclusive.

22 Defendants.

23
24 COMES NOW PLAINTIFF JONATHAN FLORES, complaining of
25 Defendants and alleges as follows:

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I.

JURISDICTION

1. This action is brought pursuant to the Tort Claims Act, 28 U.S.C. §2671 et seq. Jurisdiction is founded on 29 U.S.C. §§1346(b).

II.

VENUE

2. Venue is proper in the Central District of California. The motor vehicle accident giving rise to this complaint occurred near Grevillea Ave. & 153rd St., Lawndale, CA 90260, which is within the present judicial district. Plaintiff also resides within this judicial district.

III.

PARTIES

3. Plaintiff JONATHAN FLORES (hereafter "PLAINTIFF") is and at all relevant times was a resident of Los Angeles County, California.

4. At all times relevant herein, the Defendant UNITED STATES OF AMERICA is a governmental agency.

IV.

FACTS COMMON TO ALL ACTIONS

5. On or about February 24, 2020, Plaintiff was lawfully operating his vehicle westbound on 153rd St. near Grevillea Ave.. Defendant's employee operated his vehicle southbound on Grevillea Ave. approaching the same intersection. Defendant UNITED STATES OF AMERICA's employee failed to stop for the stop sign for his direction of travel and/or yield to traffic and crossed the intersection without caution and in such an unsafe manner that he violently collided with Plaintiff's vehicle.

6. On said date, Defendant UNITED STATES OF AMERICA's employee drove carelessly, negligently and with extreme recklessness, including, but not limited to, failing to stop for the stop sign for his direction

1 of travel and/or yield to traffic and crossed the intersection without caution
2 and in such an unsafe manner.

3 7. In failing to stop for the stop sign for his direction of travel and/or
4 yield to traffic, Defendant UNITED STATES OF AMERICA's employee
5 carelessly and negligently struck Plaintiff JONATHAN FLORES's vehicle as
6 it traveled westbound on 153rd St..

7 8. On August 19, 2020, the Plaintiff submitted a claim based on the
8 allegations herein to the UNITED STATES OF AMERICA for
9 administrative settlement. The Defendant UNITED STATES OF AMERICA
10 denied the claim on April 2, 2021. Accordingly, Plaintiff has complied with
11 the requirements of the Federal Tort Claims Act for the timely filing of
12 claims.

13 **V.**

14 **FIRST COUNT/CAUSE OF ACTION**

15 **NEGLIGENT OPERATION OF A MOTOR VEHICLE**

16 9. Plaintiff incorporates herein by reference paragraphs 1 through 8,
17 above as though fully set forth herein.

18 10. On February 24, 2020, a U.S. Postal Service mail-delivery truck was
19 operated by Defendant UNITED STATES OF AMERICA's agent or
20 employee as he was in the course and scope of his employment with
21 Defendant UNITED STATES OF AMERICA.

22 11. Defendant UNITED STATES OF AMERICA's employee was driving
23 negligently and carelessly, including, but not limited to, failing to stop for the
24 stop sign for his direction of travel and/or yield to traffic.

25 12. Defendant UNITED STATES OF AMERICA and its agents and
26 employees acted carelessly, recklessly, unskillfully, unlawfully, tortiously,
27 wantonly and wrongfully entrusted, permitted, managed, serviced, repaired,
28 inspected, maintained, operated, controlled, and drove the U.S. Postal

1 Service Truck as to proximately cause the same to collide against the vehicle
2 which Plaintiff, JONATHAN FLORES, was then operating, as aforesaid,
3 thereby proximately causing the injuries and damages hereinafter mentioned.

4 13. Defendant UNITED STATES OF AMERICA's employee was also
5 negligent in failing to keep attentive as to his whereabouts and oncoming
6 traffic. Said Defendant knew or should have known that there was oncoming
7 traffic and failing to stop for the stop sign for his direction of travel and/or
8 yield to traffic would be unsafe, all of which negligence, carelessness and
9 recklessness constituted the proximate cause of him striking Plaintiff's
10 vehicle.

11 14. As a proximate result of each and all of the aforesaid acts and
12 omissions of the Defendants, Plaintiff was injured about his body and its
13 members and was rendered sick, sore, lame and disabled, and was injured in
14 health, strength and activity, a portion of said injuries being permanent. As a
15 result of said injuries, Plaintiff has had, and in the future will have, physical,
16 mental and emotional pain, suffering, worry and anxiety.

17 15. As a proximate result of each and all of the aforesaid acts and
18 omissions of the Defendants, Plaintiff suffered grave and serious mental
19 anguish, fear, anxiety and illness, a portion of said injuries being permanent.
20 As a proximate result of said injuries and damages, Plaintiff has had, and in
21 the future will have, physical, mental and emotional pain, suffering, worry
22 and anxiety.

23 16. By reason of said injuries, Plaintiff has incurred, and probably will
24 incur in the future, hospital, surgical, ambulance, medical, nursing and
25 household expenses, all to his further damage.

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1 17. By reason of said injuries, Plaintiff was unable to do his usual work for
2 a period of time, has been unable to do a portion of his work since that time,
3 will be partially disabled in the future and has sustained damage to his future
4 earning capacity, all to this damages, according to proof.

5 18. By reason of said injuries, Plaintiff has sustained damage to his future
6 earning capacity, all to his further damage, according to proof.

7 19. As a proximate result of each and all of the aforesaid acts and
8 omissions of the Defendants, Plaintiff's vehicle sustained damage, according
9 to proof.

10 20. By reason of said collision, Plaintiff was deprived of the use of a
11 vehicle for a period of time, all to Plaintiff's further damage, according to
12 proof.

13 **VI.**

14 **PRAYER**

15 WHEREFORE, Plaintiff demands the following relief, jointly and
16 severally, against all the Defendants;

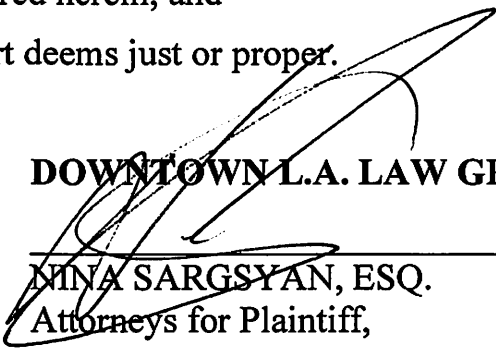
17 a) For damages for injuries sustained due to the negligence of Defendant
18 UNITED STATES OF AMERICA's agent and employees, including past and
19 future medical expenses, lost wages, loss of earning capacity, pain and
20 suffering, mental anguish, and all other appropriate damages resulting from
21 his injuries.

22 b) Costs of suit necessarily incurred herein; and

23 c) Such further relief as the Court deems just or proper.

24
25 DATED: April 21, 2021

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NINA SARGSYAN, ESQ.

28 Attorneys for Plaintiff,
JONATHAN FLORES

JURY TRIAL DEMAND

Plaintiff demands trial by jury of all issues so triable.

DATED: April 21, 2021

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NINA SARGSYAN, ESQ.

Attorneys for Plaintiff,

IONATHAN FLORES